

HOLLYWOOD FOREIGN PRESS v. RED ZONE CAP. PARTNERS, 870 F. Supp. 2d 881 - ...



Read **How cited**

How this document has been cited

Since 1996, the Golden Globe Awards show has aired on NBC under a long-term license agreement that dcp and NBC entered into in 1993, which dcp and NBC extended in 2001 and 2010

- in Oscar Law and one similar citation

—license the Golden Globes Award Show to NBC (but not to others) so long as NBC commits to broadcast that show, and [DCP could] do so even without the approval of the Hollywood Foreign Press Association

- in Oscar Law and one similar citation

There, for instance, we discovered an epic legal dispute between the HFPA and Dick Clark Productions, the firm hired by the HFPA to produce and televise the Golden Globe Awards

- in Oscar Law and one similar citation

The burden of proof lies with the party asserting each claim, counterclaim, or defense, except for the burden of proving agency and the scope of the agent's authority, which rests upon the party asserting the existence thereof

- in [Terrazas v. DEL RECORDS INC., 2025](#) and one similar citation

—pages of factual findings and conclusions of law, a judicial burden prompting the court to lament that “[r] esolution of [this] dispute... should not have required a trial

- in Oscar Law

In contrast, dcp acted in a consistently business-like fashion, and for almost all of the 27 year relationship it had with HFPA before this suit was filed dcp was represented by one experienced executive who was adept at dealing fairly and effectively with the often amateurish conduct of HFPA

- in Oscar Law

The “course of trade” or “trade usage” are the rubrics for a custom-oriented doctrine whether the practice is neither between the parties to the contract at issue nor involves the contract at issue, but merely the general custom of those parties engaged in a similar trade

- in COVID, Contracts, and Colleges

Thus, no oral promises or agreements alleged in Plaintiff's SAC may constitute additional or conditional terms to the release.

- in [Cooley v. MENZIES AVIATION \(USA\) INC., 2025](#)

—stating that “industry custom binds those engaged in the business even though there is no specific proof that the particular party to the litigation knew of the custom

- in COVID, Contracts, and Colleges

The HFPA claimed that any further extensions were contingent upon its consent, but that interpretation was not supported by the contract' s plain language or any extrinsic evidence

- in Oscar Law

Cited by

[Cooley v. MENZIES AVIATION \(USA\) INC.](#)

Dist. Court, ND California 2025

[Terrazas v. DEL RECORDS INC.](#)

Dist. Court, CD California 2025

[CITATION] Oscar Law

RK Weisbord... - Ala. L. Rev., 2024

[CITATION] COVID, Contracts, and Colleges

JK Setear - W. Va. L. Rev., 2023

[IN RE McCAFFERY](#)

Bankr. Court, D. New Jersey 2016

[AGRICOLA BAJA BEST, S. DE. RL DE CV v. HARRIS MORAN SEED COMPANY](#)

Dist. Court, SD California 2014

[Agricola Baja Best v. HARRIS MORAN SEED](#)

44 F. Supp. 3d 974 - Dist. Court, SD California 2014